

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2914

By: Pittman

AS INTRODUCED

An Act relating to caretakers; creating the Oklahoma Respite Care Pilot Program for Seniors Act; providing the purpose; providing definitions; establishing respite care pilot programs; providing for eligibility; providing application process; providing participating providers; providing for funding; providing for reporting and evaluation; providing for codification; and providing an effective date.

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3119.1 of Title 63, unless there is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Oklahoma Respite Care Pilot Program for Seniors Act".

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3119.2 of Title 63, unless there is created a duplication in numbering, reads as follows:

The purpose of this act is to establish pilot programs designed to provide respite care services for seniors in Oklahoma through vouchers or respite waivers. These programs will ensure caregivers

1 can access essential weekend and evening care services through adult  
2 day centers and residential care facilities equipped to meet the  
3 unique needs of seniors. The ultimate goal is to reduce caregiver  
4 burnout, support working families, and improve the well-being of  
5 both seniors and their caregivers by offering flexible care options.

6 SECTION 3. NEW LAW A new section of law to be codified  
7 in the Oklahoma Statutes as Section 3119.3 of Title 63, unless there  
8 is created a duplication in numbering, reads as follows:

9 For purposes of this act:

10 1. "Adult day center" means a licensed facility providing  
11 social, health-related, or personal care services in a protective  
12 setting during the day;

13 2. "Respite care" means temporary relief for primary caregivers  
14 of seniors, providing short-term care for seniors in appropriate  
15 settings;

16 3. "Residential care facility" means a facility licensed to  
17 provide care services to seniors who do not require twenty-four-hour  
18 nursing care but need assistance with daily living activities;

19 4. "Respite waiver" refers to financial assistance provided to  
20 eligible caregivers, ensuring access to respite care services at no  
21 or reduced cost; and

22 5. "Voucher" means a payment issued to caregivers allowing them  
23 to obtain respite care services from participating care providers.

1       SECTION 4.       NEW LAW       A new section of law to be codified

2 in the Oklahoma Statutes as Section 3119.4 of Title 63, unless there  
3 is created a duplication in numbering, reads as follows:

4       A. The Department of Human Services (DHS) is hereby authorized  
5 to establish and administer pilot programs for the provision of  
6 respite care vouchers or respite waivers to caregivers of seniors  
7 limited to designated counties, and within the designated counties,  
8 qualified facilities may opt into the pilot program.

9       B. The pilot programs shall:

10       1. Provide financial assistance in the form of vouchers or  
11 waivers for caregivers of seniors, enabling them to access care  
12 services outside traditional hours, including weekend and evening  
13 care;

14       2. Prioritize caregivers who are employed in evening-hour or  
15 nontraditional work schedules, ensuring they have access to services  
16 when needed most; and

17       3. Facilitate the participation of adult day centers,  
18 residential care facilities, and other licensed providers equipped  
19 to deliver care for seniors with various health and personal needs.

20       SECTION 5.       NEW LAW       A new section of law to be codified

21 in the Oklahoma Statutes as Section 3119.5 of Title 63, unless there  
22 is created a duplication in numbering, reads as follows:

23       A. To qualify for participation in the respite care pilot  
24 programs, applicants shall:

1        1. Be primary caregivers of seniors aged sixty-five (65) years  
2 or older;

3        2. Demonstrate employment in evening-hour jobs or  
4 nontraditional work schedules where traditional caregiving services  
5 are not sufficient; and

6        3. Provide documentation demonstrating financial need for  
7 respite care assistance, as determined by the Department of Human  
8 Services (DHS).

9        B. Applications for respite care vouchers or waivers shall be  
10 made to (DHS), which will evaluate and approve applicants based on  
11 established criteria.

12        SECTION 6.        NEW LAW        A new section of law to be codified  
13 in the Oklahoma Statutes as Section 3119.6 of Title 63, unless there  
14 is created a duplication in numbering, reads as follows:

15        A. Eligible providers for respite care services under this act  
16 shall include:

17        1. Licensed adult day centers and residential care facilities;  
18 and

19        2. Other licensed care agencies equipped to meet the unique  
20 needs of seniors.

21        B. Providers shall be reimbursed by the state for services  
22 rendered under the voucher or waiver programs, based on rates  
23 established by the Department of Human Services (DHS).

1       SECTION 7.       NEW LAW       A new section of law to be codified  
2 in the Oklahoma Statutes as Section 3119.7 of Title 63, unless there  
3 is created a duplication in numbering, reads as follows:

4       A. The respite care pilot programs established by this act  
5 shall be funded through multiple sources, including but not limited  
6 to:

- 7       1. Grants from federal, state, or private sources;
- 8       2. Public-private partnerships designed to support caregiving  
9 and senior care; and
- 10      3. Allocated state funds, subject to legislative  
11 appropriations.

12      B. The Department of Human Services (DHS) is authorized to seek  
13 and apply for available federal and state funding to support the  
14 pilot programs, including funds under the Medicaid program and other  
15 relevant federal initiatives.

16      SECTION 8.       NEW LAW       A new section of law to be codified  
17 in the Oklahoma Statutes as Section 3119.8 of Title 63, unless there  
18 is created a duplication in numbering, reads as follows:

19      A. The Department of Human Services (DHS) shall conduct an  
20 annual review and report to the Legislature on the effectiveness of  
21 the respite care pilot programs, including:

- 22      1. The number of caregivers served by the programs;
- 23      2. Data on the utilization of care services during  
24 nontraditional hours; and

1        3. Program outcomes, including improvements in caregiver well-  
2 being and senior care.

3        B. The report shall include recommendations for expanding,  
4 modifying, or continuing the programs based on its performance and  
5 stakeholder feedback.

6        SECTION 9. This act shall become effective November 1, 2025.

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